

Court No. - 37

Case :- WRIT - C No. - 30182 of 2013

Petitioner :- Brahmpal Singh

Respondent :- State Of U.P. Thru Secy. And 2 Others

Counsel for Petitioner :- Birendra Kumar Gautam, Shashank Kumar

Counsel for Respondent :- C.S.C., Shailesh Pandey

Hon'ble Sheo Kumar Singh, J.

Hon'ble Brijesh Kumar Srivastava-II, J.

Heard learned counsel for the petitioner, learned Standing Counsel and Sri Shailesh Pandey, learned counsel appeared for Power Corporation.

Petitioner do not dispute the liability and he is ready to pay the entire amount within the time required. For the aforesaid purpose, petitioner has alternative remedy.

6.5 of the Electricity Supply Code 2005 permits the competent authority to grant facility in payment to assessment bill and he is to consider the financial stress and other aspects which is to be placed by the petitioner.

Accordingly, petitioner is permitted to move certified copy of this order along with fresh representation stating the financial hardship/stress upon which the competent authority will pass appropriate orders, keeping in mind the discretion/powers conferred on him within shortest possible time preferably within a period of three weeks from the date of receipt of a certified copy of this order.

Writ petition stands disposed of.

Order Date :- 27.5.2013

Puspendra